

2	Ticey v. JPMorgan Chase Bank N. A.	Plaintiffs Troy Ticey and Cynthia L. Ticey move for preliminary injunction enjoining all foreclosure and collection activities by Defendant JP Morgan Chase Bank, N.A., ("Defendant Chase") and enjoining Defendant Chase from reporting derogatory credit information to the credit reporting agencies. For the following reasons, the motion is CONTINUED to September 03, 2026, at 1:30 p.m. in this Department. As discussed in this court's previous order denying Plaintiffs' motion for preliminary injunction, to the extent Plaintiffs argue the deed of trust encumbering their property is defective and/or unenforceable due to WaMu's failure to obtain Plaintiff Cynthia Ticey's signature on the underlying loan documents, or due to fraud or unfair business practices by WaMu, Plaintiffs' claims are based on alleged misconduct by Defendant's predecessor, Washington Mutual Bank ("WaMu"). In September 2008, WaMu failed, the Federal Deposit Insurance Corporation ("FDIC") was appointed as receiver of the bank, and Defendant Chase later purchased some of WaMu's assets and liabilities. (See <i>Saffer v. JP Morgan Chase Bank, N.A.</i> (2014) 225 Cal.App.4th 1239, 1242-1243.) The Financial Institutions Reform, Recover, and Enforcement Act of 1989 ("FIRREA") provides a mandatory claims process, as a prerequisite to filing a civil claim against failed institutions such as WaMu and their successors. (See 12 U.S.C., § 1821(d)(13)(D).) United States Code, title 12, section 1821(d)(13)(D) provides that: "Except as otherwise provided in this subsection, no court shall have jurisdiction over—[¶] (i) any claim or action for payment from, or any action seeking a determination of rights with respect to, the assets of any depository institution for which the [Federal Deposit Insurance] Corporation has been appointed receiver, including assets which the Corporation may acquire from itself as such receiver; or [¶] (ii) any claim relating to any act or omission of such institution or the Corporation as receiver." "'[F]ailure to comply with the claims procedure bars any lawsuit against a failed depository institution.' [Citation.]" (<i>Saffer v. JP Morgan Chase Bank, N.A.</i> (2014) 225 Cal.App.4th 1239, 1247.) Specifically, failure to exhaust administrative remedies under FIRREA deprives courts of subject matter jurisdiction. (<i>Id.</i> at pp. 1248-1249.) Furthermore, "FIRREA exhaustion requirements apply even when a claim is asserted against a successor bank [such as JPMorgan Chase Bank], rather than the failed bank or the FDIC." (<i>Id.</i> at p. 1255; see also <i>Benson v. JPMorgan Chase, N.A.</i> (9th Cir. 2012) 673 F.3d 1207, 1214 [holding that "where a claim is functionally, albeit not formally against a depository institution for which the FDIC is a receiver, it is a 'claim' within the meaning of FIRREA's administrative claim process."]) Plaintiffs submit evidence for the first time on Reply that they pursued an administrative claim before the FDIC. (See ROA # 276 [Not. of Correction, RJN] at Ex. A.) Because this evidence was not submitted with the moving papers, the court finds it just to provide Defendant the opportunity to address the evidence.
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		In addition, the court would benefit from supplemental evidence and/or briefing on whether Plaintiffs' pursuit of administrative remedies after the December 2008 "bar date" provides this court subject matter jurisdiction over this dispute. (See 12 U.S.C., § 1821(d)(5)(C)(d)(6) [providing that any claimant who fails to make timely administrative claim "shall be deemed to be disallowed . . . , and the claimant shall have no further rights or remedies with respect to the claim"]; <i>Saffer v. JP Morgan Chase Bank, N.A.</i>, <i>supra</i>, 225 Cal.App.4th at p. 1243-1244 [explaining the FDIC published notices informing creditors of WaMu that any claims against WaMu must be submitted to the FDIC by 12/30/2008].) Defendant Chase shall submit a supplemental opposition brief not to exceed five (5) pages responding to the new evidence on reply; and addressing whether Plaintiffs have complied with the FIRREA claims process and whether this court has subject matter jurisdiction to consider Plaintiffs' claims based on alleged misconduct by WaMu. Defendant Chase may submit supplemental evidence relating only to these issues. Plaintiffs may file a supplemental reply brief not to exceed five (5) pages responding to any new evidence or argument presented by Defendant Chase. The moving party is ordered to give notice. <u>Case Management Conference</u> The Case Management Conference is continued to September 03, 2026, at 1:30 p.m. in this department. Plaintiff to give notice.
3	Schakel v. MLM Distributors, Inc.	Off calendar
4	People of the State of California v. Benji	Off calendar
5	Clarker, Inc. v. Ellis & Son Trucking, Inc.	<u>OSC re Dismissal</u> The court hereby DISSOLVES the Order to Show Cause re: Dismissal for Failure to Prosecute. <u>Motion to Serve via Secretary of State</u> Plaintiff Clarker, Inc., moves for order permitting service of summons State on Defendant Ellis & Son Trucking, Inc., through the California Secretary of State. For the following reasons, the motion is GRANTED. Service on corporate defendants may generally be accomplished by personal or substituted service. (Code Civ. Proc., §§ 415.20(a), 416.10.)